5.5.4. Punchhi Commission



Justice Madan Mohan Punchhi

The Union Government constituted a commission in 2007, under the leadership of Justice Madan Mohan Punchhi, the former Chief Justice of the Supreme Court in 2007. The commission also had three more members and a Secretary and presented its report in 2010. It recommended that the governors of the States must have fixed tenure and they should be removed only through impeachment process akin to the President of India. It wanted to introduce changes in articles 355 and 356 so that insurgency or problem afflicted areas or districts in a State rather than the entire State can be brought under emergency as a strategy to localize emergency and efficiently handle insurgency or troubles. The commission also suggested that the Union Government must have power and authority for the suomotu deployment of central forces without the consent of the concerned States in areas affected by communal violence.

Activity

Organize a group discussion in the class on the argument that the big states must be bifurcated into small states so as to promote development.

Activity: Case study

Supreme Court Judgment in S.R. Bommai Case



- Somappa Rayappa Bommai (6 June 1924 to 10 October 2007) was the 11th Chief Minister of Karnataka. He was also the Human Resource Development Minister in the United Front Government from 1996 to 1998 and served with both the Prime Ministers H. D. Deve Gowda and I. K. Gujral.
- The Supreme Court delivered a landmark judgment in the S.R.Bommai versus Union of India Case in 1994 that has protected the rights of the states greatly. S.R. Bommai was the Chief Minister of Karnataka and his government was dismissed in 1994 by the Central Government leading to the filing of the case in the Supreme Court. The judgment protected the states from the arbitrary dismissal at the hands of the hostile Central Government. The main features of the judgment are:
- Article 356 is an exceptional power to the Union Government and it should be used only occasionally to meet the exigencies of special occasions.

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